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File No.: EXP202208626

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 8, 2022, a complaint was filed with registration number REGAGE22e00029210725, REGAGE22e00029229466, and REGAGE22e00029230968 before the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant submits a complaint for receiving commercial calls on their mobile line ***PHONE.1, which has been registered in the Robinson List since 10/07/2013.

Along with the notification, the following is provided:

- A chronology and 10 screenshots evidencing the receipt of 10 telephone calls between 03/25/2022 and 07/07/2022. Specifically, on 07/07/2022, they received three calls from the calling lines ***PHONE.2, ***PHONE.3, and ***PHONE.2, at 18:33, 20:59, and 21:31 hours, respectively.
- A recording of two received calls. The callers identify themselves as Vodafone and offer fiber optic services.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on August 16, 2022, as evidenced by the acknowledgment of receipt in the file.

On September 16, 2022, this Agency received a response indicating that:

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"After receiving this request, we have checked whether the numbers reported by the complainant are listed in Vodafone's databases that contain the telephone numbers used by our collaborators to make solicitation calls. In this regard, we have verified that the numbers reported by the complainant do not appear in our database of numbers associated with our collaborators who make solicitation calls on behalf of Vodafone.

Notwithstanding the above, Vodafone cannot rule out that these calls may have been made by third parties unrelated to Vodafone or its agents, impersonating the corporate identity of this entity, with fraudulent or malicious intent, through the use of "spoofing" techniques or corporate identity theft."

"It has been verified that the receiving telephone line is registered in the official Robinson List of ADigital since October 7, 2013, as well as in Vodafone's internal Robinson list."

THIRD: On September 26, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

(...).

XFERA, in a document submitted on November 1 and December 22, 2022, states that the holders of

these lines are all prepaid individuals. None of the lines have been ported or donated.

Regarding this case, it is necessary to make the following clarification: the called number is on our network, as are the calling numbers, so we can verify both ends of the calls.

From the calling side, we do not have records of the calls on our network; in fact, they did not have sufficient balance to make the calls. However, those calls are recorded as received on the receiving number. This is possible if the call was made in VoIP mode, using the outgoing numbers in these calls as a mask for the real number, which is unknown and usually enters as international traffic; in fact, this traffic entered through the Orange network, not passing through our network in emission.

In other words, the calls did not originate from the calling lines, but they were received by the receiving line.

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(...).

EVOLUTIO CLOUD ENABLER S.A. in a document submitted on October 20, 2022, states that:

The line ***PHONE.4 has been registered with EVOLUTIO since 01/24/2022.

The holder is IM TRAVEL RISK SOLUTIONS, S.L., with CIF: B88260690 Address: C/ Irún, No. 7. Right-Bottom. 28008 Madrid.

IM TRAVEL RISK SOLUTIONS, S.L., in a document submitted on November 10, 2022, states that:

No advertising calls are made. There are no outgoing calls recorded on that day or any other.

The incoming call on June 16, 2022, at 16:21 from ***PHONE.1 contains nothing more than the hold music left waiting for an operator.

The incoming call on June 16, 2022, at 16:45 from ***PHONE.1 contains a query from the user, who does not identify herself, regarding a quote for insurance, inquiring about coverage for pre-existing conditions.

Both calls are made by the interested party, without any name or identification, and are attended to by the operator who was on duty, with the relevant clarifications regarding the location and completion through the portal of the prior form for the quotation of the consulted product, and other doubts of the user. The call ends with the satisfaction of both parties.

Due to the fact that the call is incoming, and that it does not involve or constitute the commercial calls in question, the data comes directly from the interested party who makes a call to the phone

***PHONE.4 inquiring about an insurance product, to which the operator resolves the doubts raised.

The inspector verifies that in the screenshot of this call provided by the claimant in the complaint, it is recorded as an outgoing call, not an incoming one.

(...).

LEAST COST ROUTING TELECOM, S.L., in a document submitted on October 21, 2022, states that the holder is:

STG GROUP, S.A.C with RUC (NIF) 20606242507 and address at CAL. JOSÉ PEREYRA, 586 URB.PANAMERICANA NORTE, C.P. 07001- LIMA – PERU.

Email: ***EMAIL.1.

The line is used through SIP trunking connection (Session Initiation Protocol connection that consists of using voice over IP) via a VoIP service (Voice over IP). VoIP technology is the virtual equivalent of a traditional line for businesses, allowing calls to be made over the internet. Through this technology, the telephone service of line ***PHONE.5 is provided. There is no physical installation at a residence; there is a connection to voice services via the Subscriber or User's internet so that the voice signal is sent digitally over their IP network.

On the indicated date, this company was a client of "unidirectional interconnection" services (Object of the service provision by LEAST COST ROUTING TELECOM (LCRCOM): use of the network and transmission and switching technology of LCRCOM so that STG GROUP provides services to its end customers or users of line ***PHONE.5). It was not a Reseller of LCRCOM, but the contract signed

between LCRCOM and STG GROUP dated 07/06/22 is attached to this document.

This line has not been donated or resold, neither prior to nor subsequent to the indicated date.

It provides the contract for Unidirectional Interconnection Services and Annex I Reseller Activity, both dated 07/06/22 signed with STG.

The contract indicates in section II that the CLIENT is a company of Peruvian nationality, also dedicated to the Telecommunications Services Sector, which is authorized with the necessary permits and authorizations from the National Commission of Markets and Competition (CNMC), when these permits or authorizations are mandatory for the development of its activity in Spain; and that it commits to keeping them in force during the term of the contract.

In the Annex, the FIFTH ADDITIONAL PROVISION. OBLIGATIONS AND REQUIREMENTS OF THE RESELLER section 5.1 indicates the obligation to: Be registered as an operator for the activity of "Resale of fixed telephony – direct access" before the "National Commission of Markets and Competition" of Spain (CNMC).

It is verified that as of 10/27/22, STG GROUP is not registered as an operator with the CNMC.

It has been verified on the dates of 10/07/22 and 11/28/22 that STG does not appear as a reseller with the CNMC.

Information requested from STG GROUP S.A.C. on October 24, 2022, is recorded as delivered on October 31 without a response received as of the date of this report. The acknowledgment of receipt is incorporated as a document in this file.

(...).

LEAST COST ROUTING TELECOM, S.L., in a document submitted on October 21, 2022, states that the holder is:

NET VOISS, S.A.C. with NIF (RUC): 20545529719 and registered office at AV. PETIT THOUARS 1775 of 901 EDIFICIO EL ALMIRANTE, LINCE -LIMA – PERU.

The line is used through SIP trunking connection (Session Initiation Protocol connection that consists of using voice over IP) via a VoIP service (Voice over IP). VoIP technology is the virtual equivalent of a traditional line for businesses, allowing calls to be made over the internet. Through this technology, the telephone service of line ***PHONE.5 is provided.

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provides the telephone service for the line ***PHONE.2. There is no physical installation at a residence; there is a connection to voice services via the Subscriber's or User's internet so that the voice signal is sent digitally over their IP network.

The contact details for your representative office in Spain are TECH TELECOM LEGAL SERVICES, S.L. located at CALLE ANDRÉS MELLADO, Nº 31, LOCAL 18, C.P. 28015 – MADRID – SPAIN.

Phone: 911085920 email: ***EMAIL.2.

This is a XXXXXXXX, and attached to this document is the contract between the parties signed on 30/8/21.

The line has been registered in our system since 18/08/2021 and is still active as of today. It has not been canceled or had its ownership changed.

Information requested from TECH TELECOM LEGAL SERVICES S.L. on November 18, 2022, was received by this Agency, stating that:

The holder of the line is COMERCIALIZADORA SYR CENTER 2020, C.A. with N.I.F. (RIF): J500408846 with its registered office at AV PRINCIPAL DE SABANA GRANDE CC GALERIAS CRISTAL NIVEL PISO 8 OF 8-A Y 8-D ZONA EL RECREO CARACAS DISTRITO CAPITAL ZONA POSTAL 1050 VENEZUELA.

The line is used through SIP trunking connection (Session Initiation Protocol connection that consists of using voice over IP) via a VoIP service (Voice over IP).

VoIP technology is the virtual equivalent of a traditional line for businesses, allowing calls to be made over the internet. Through this technology, the telephone service for the line ***PHONE.2 is provided.

There is no physical installation at a residence; there is a connection to voice services via the Subscriber's or User's internet so that the voice signal is sent digitally over their IP network.

The line has not been canceled or had its ownership changed during the indicated period. The line has not been donated or resold prior to or after 07/07/2022.

Additional information: NET VOISS S.A.C. operates as a "Reseller" of telephone line usage, authorized by the National Commission of Markets and Competition (CNMC) (attached is the registration of NET VOISS S.A.C. with the CNMC for telephone resale).

NET VOISS contracts with Operators for the commercial exploitation of telephone lines through its resale to "Subscribers/Users of the telephone line" (NET VOISS clients, such as in this case, COMERCIALIZADORA SYR CENTER 2020, C.A.). The use of the contracted telephone lines is enjoyed solely by the "Subscribers/Users of the telephone lines," and therefore, it is these clients or subscribers who make the calls. NET VOISS S.A.C cannot engage in self-consumption of the lines it contracts with the Operator for resale.

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Attached documents include:

1. Contract for the provision of IP telephone services signed between NET VOISS S.A.C. and COMERCIALIZADORA SYR CENTER 2020, C.A. signed on 5/1/22.
2. Registration of NET VOISS S.A.C. with the CNMC for telephone resale.

In the contract dated 5/1/22 FOR THE PROVISION OF IP TELEPHONE SERVICES, it states:
NINTH CLAUSE. - OBLIGATIONS OF THE CLIENT

THE CLIENT, by signing this Contract, agrees to:

- c. Use the contracted SERVICE for its own needs, and it is expressly prohibited to market and/or sublease it to third parties or for other uses without the express written authorization of NET VOISS.
- e. Assume full legal responsibility for the Databases of users and/or related parties that it uses for commercial calls.
- f. Comply with all obligations established in this Contract and its Annexes.

Information requested from COMERCIALIZADORA SYR CENTER 2020, C.A. on November 18, 2022, is still pending as of the date of this report.

(...).

Requested from the representative in Spain MLAB ABOGADOS S.L.P. of the final operator VOXBONE, S.A (Belgium) the holder of the phone number, on January 9, 2023, this Agency received a letter informing that the number in question was at that time assigned to STG Company with its registered office at Calle Alejandro Dumas 17, Málaga (Málaga). That the number was activated on 10/8/21 and remains active. That there are no outgoing calls to the indicated number.

As has already been verified in the numerous records held by this Agency, STG Company is not in itself a commercial company but a brand of the company STG GROUP S.A.C. (hereinafter, STG GROUP) based in Peru.

Additionally, it has been established in these records that the registered postal address with the operator VOXBONE is incorrect, verifying on the STG Company website that the registered office of this entity corresponds to STG GROUP.

Furthermore, it is noted that STG Company has been in temporary suspension at least since the search conducted on 24/11/2022.

Screenshots related to STG Company are incorporated into the file, collecting this evidence.

LEGAL GROUNDS

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I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General

Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for the Protection of Data by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for the Protection of Data must process in exercising the competencies attributed to it by other laws."

II

Final Provision Sixth of the LGTel (Entry into force)

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force within one year from the publication of this law in the "Official State Gazette." Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

III

Conclusion

Through the investigations carried out by this Agency, it has been determined that the calls made between March 25 and June 16, 2022, originated from prepaid caller numbers and were made using VoIP mode, utilizing outgoing numbers as a mask for the real number, which is unknown and entered as international traffic through the network of another operator. In other words, the calls did not originate from the emitting lines, but were received by the receiving line.

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This is possible because this numbering was very likely subject to CLI spoofing (which is a way to mask the identity of companies or individuals by changing the number that appears on the caller ID, using the number to make it seem that another company or person is calling). Therefore, it cannot be determined who made the calls and who is responsible for them.

The call made on June 16 has been verified as a call made by the complainant.

The calls made between July 4 and 7 were from a calling entity corresponding to a company located in Peru, for which no representative has been located in the European Union; therefore, it should be noted that the LGT does not confer the Spanish Agency for the Protection of Data with competencies over a company located in Peru.

From the other call made on July 7, the calling entity is from Venezuela and has not responded to the request sent by this Agency, making it impossible to determine that it is the final responsible party for the claimed call. Thus, the principle of the presumption of innocence prevents attributing an administrative infraction when no evidence has been obtained and verified that substantiates the facts that motivate the accusation or the involvement of the alleged infringer.

Therefore, in accordance with the aforementioned, by the Director of the Spanish Agency for the Protection of Data,

IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for the Protection of Data within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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